

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 5	CCRB Case #: 201100274	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/17/2010 7:30 PM	Location of Incident: § 87(2)(b) en route to and at the 73rd Precinct Stationhouse	Precinct: 73	18 Mo. SOL 6/17/2012	EO SOL 6/17/2012	
Date/Time CV Reported Fri, 01/07/2011 9:59 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/07/2011 9:59 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrew Kamna	24865	943423	073 PCT
2. POF Nahantara Gonzalez	05325	941951	073 PCT
3. POM Francisco Pina	26670	934066	073 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT William Wise	04262	900726	073 PCT
2. POM Efrain Morales	23427	947273	PSA 2
3. SGT Ricardo Otero	02825	925867	073 PCT
4. LT Peter Capone	00000	897133	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Andrew Kamna	Abuse: At § 87(2)(b) in Brooklyn, PO Andrew Kamna stopped § 87(2)(b)	§ 87(2)(g), § 87(4-b)
B.POF Nahantara Gonzalez	Force: At § 87(2)(b) in Brooklyn, PO Nahantara Gonzalez used physical force against § 87(2)(b)	§ 87(2)(g), § 87(4-b)
C.POM Andrew Kamna	Force: At § 87(2)(b) in Brooklyn and en route to and at the 73rd Precinct stationhouse, PO Andrew Kamna used physical force against § 87(2)(b)	§ 87(2)(g), § 87(4-b)
D.POM Francisco Pina	Force: At § 87(2)(b) in Brooklyn and en route to and at the 73rd Precinct stationhouse, PO Francisco Pina used physical force against § 87(2)(b)	§ 87(2)(g), § 87(4-b)
E.POM Francisco Pina	Force: At § 87(2)(b) in Brooklyn, PO Francisco Pina used a chokehold against § 87(2)(b)	§ 87(2)(g), § 87(4-b)
F. Officers	Abuse: At the 73rd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(g), § 87(4-b)

Case Summary

On January 7, 2011, § 87(2)(b) filed this complaint with the CCRB via telephone (encl. 5A-C). On May 13, 2011, § 87(2)(b) filed this complaint with IAB via telephone (encl. 6L). On December 17, 2010, at approximately 7:30 p.m., PO Andrew Kamna, PO Francisco Pina, and PO Nahantara Gonzalez stopped § 87(2)(b) at § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority:** At § 87(2)(b) in Brooklyn, PO Andrew Kamna stopped § 87(2)(b) § 87(2)(g).
- **Allegation B – Force:** At § 87(2)(b) in Brooklyn, PO Nahantara Gonzalez used physical force against § 87(2)(b) § 87(2)(g).
- **Allegation C – Force:** At § 87(2)(b) in Brooklyn, en route to and at the 73rd Precinct stationhouse, PO Andrew Kamna used physical force against § 87(2)(b).
- **Allegation D – Force:** At § 87(2)(b) in Brooklyn, en route to and at the 73rd Precinct stationhouse, PO Francisco Pina used physical force against § 87(2)(b) § 87(2)(g).
- **Allegation E – Force:** At § 87(2)(b) in Brooklyn, PO Francisco Pina used a chokehold against § 87(2)(b) § 87(2)(g).
- **Allegation F – Abuse of Authority:** At the 73rd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b) § 87(2)(g).
- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant/victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who is 5'9" tall, weighs 185 pounds, and has black hair and § 87(2)(b) eyes. § 87(2)(b) § 87(2)(b).

Statements to Medical Personnel (encl. 6A-B)

On December 19, 2010, § 87(2)(b) told medical personnel at § 87(2)(b) that he was assaulted by the police and had injuries to his head, shoulder, and left arm.

CCRB Testimony

On February 22, 2011, § 87(2)(b) provided a telephone statement regarding the incident (encl. 6C). On March 2, 2011, § 87(2)(b) provided a sworn statement at the CCRB (encl. 6D-K).

On December 17, 2010, at approximately 7:30 p.m., § 87(2)(b) and five to seven friends, including § 87(2)(b) and § 87(2)(b) whose last name he did not know, were outside of § 87(2)(b) in Brooklyn. They were never inside the building. Officers identified through investigation as PO Francisco Pina, PO Andrew Kamna, and PO Nahantara Gonzalez approached them and asked if they lived at § 87(2)(b). Several of them said that they did. § 87(2)(b) did not say anything. PO Kamna then specifically asked § 87(2)(b) if he lived there. § 87(2)(b) said “I don’t live in the building. I have friends who live in the building. It ain’t like we’re hanging in the building.” The officers asked for his identification. He provided photocopies of his birth certificate, social security card, and welfare benefits card. PO Kamna took the identification.

PO Pina and PO Gonzalez moved § 87(2)(b) under the awning of § 87(2)(b). PO Kamna came back and said, “Put your hands behind your back. It came back that you have a warrant.” PO Pina grabbed § 87(2)(b) by the upper body from the side and slammed him to the ground. PO Pina put his forearm across § 87(2)(b)’s neck and locked it in place with his other arm for several seconds, preventing § 87(2)(b) from talking or breathing, though he never lost consciousness. PO Pina or PO Kamna placed § 87(2)(b) in handcuffs. PO Kamna and PO Gonzalez kicked § 87(2)(b) about the head, back, and face.

Numerous additional officers arrived. PO Kamna picked § 87(2)(b) up. PO Pina and PO Kamna dragged § 87(2)(b) to a van. They placed § 87(2)(b) in the back seat. PO Pina and PO Kamna punched him in the head, face, and stomach while sitting in front of him.

At the stationhouse, PO Pina and PO Kamna brought § 87(2)(b) to the front desk. He was bleeding from his face. PO Pina and PO Kamna slammed his head down on the desk and he fell to the floor. PO Pina and PO Kamna took him to a holding cell where they kicked him. § 87(2)(b) asked many officers for medical attention, none of whom he could identify by name, shield number, or physical description. The officers told § 87(2)(b) to ask his arresting officer.

The EMT at Brooklyn Central Booking had the transporting officers take § 87(2)(b) to § 87(2)(b). He was diagnosed as having a head injury, a neck injury, a head contusion, and multiple abrasions. He had also aggravated his previously broken arm.

§ 87(2)(b) described PO Pina and PO Kamna as white males who were at least 5’9” tall with muscular builds. He could not provide any distinguishing physical characteristics. § 87(2)(b) described PO Gonzalez as a black female who was 5’9” tall with a slim build.

Attempts to Contact Civilians

Between March 11, 2011 and April 12, 2011, the undersigned investigator called § 87(2)(b) five times. Once, § 87(2)(b) asked to be called back later; once, § 87(2)(b) hung up; twice, the undersigned investigator left voicemail messages. On the fifth occasion, the phone number was out of service. On March 11, 2011, the undersigned investigator mailed a please call letter to § 87(2)(b) at the address provided by § 87(2)(b). On March 25, 2011, a please call letter was left at § 87(2)(b) apartment with a resident who stated she would give it to him. A search of the New York City Inmate Look-up Service on July 7, 2011 showed that § 87(2)(b) is not incarcerated.

Between March 11, 2011 and March 23, 2011, the undersigned investigator called § 87(2)(b) five times. The undersigned investigator first left two voicemail messages. On the third occasion, § 87(2)(b) asked to be called back later. The undersigned investigator then left two additional voicemail messages. On March 21, 2011 and July 7, 2011, the undersigned investigator mailed please call letters to § 87(2)(b) at two addresses obtained through a Lexis Nexis search. None have been returned by the United States Postal Service. A search of the New York City Inmate Look-up Service on July 7, 2011 showed that § 87(2)(b) is not incarcerated.

§ 87(2)(b) was unable to provide a last name or contact information for § 87(2)(b). Therefore, no contact attempts were made.

Fieldwork (encl. 7)

On March 25, 2011, the undersigned investigator went to § 87(2)(b) and § 87(2)(b) in Brooklyn. These two addresses are the front and rear of the same building. Photos were taken of the location (encl. 4A-C). A letter was left with a resident of § 87(2)(b) residence. The undersigned investigator spoke with several individuals in the area, none of whom recalled the incident.

NYPD Statements

Subject Officer: PO NAHANTARA GONZALEZ

- *PO Gonzalez is a § 87(2)(b)-old black female who is 5'5" tall, weighs 155 pounds, and has black hair and brown eyes.*
- *On December 17, 2010, PO Gonzalez, shield number 5325, worked from 4:00 p.m. to 12:35 a.m. on December 18, 2010. She was working violence reduction overtime with PO Kamna and PO Pina. She was in uniform and assigned to a marked van.*

Memo Book (encl. 8A-C)

In her memo book, PO Gonzalez noted that at 7:30 p.m., she performed a vertical patrol at § 87(2)(b). One male was stopped and returned on a warrant. He ran from the officers and resisted arrest. At 7:43 p.m., he was under arrest by PO Kamna.

CCRB Testimony (encl. 8D-J)

On May 12, 2011, PO Gonzalez was interviewed at the CCRB. On December 17, 2010, at approximately 7:30 p.m., PO Gonzalez, PO Pina, and PO Kamna were performing a vertical patrol at § 87(2)(b) in Brooklyn. There was a group of at least five or six individuals, including § 87(2)(b) in the lobby. They were not doing anything in particular that caught PO Gonzalez' attention and PO Gonzalez did not hear anything they were saying. After observing the group for approximately two minutes, the officers approached to determine if they lived at the location. PO Kamna asked if they lived at the location. Several said that they did. The officers followed the group outside and § 87(2)(b) and one other individual remained. The other individual resided at § 87(2)(b). § 87(2)(b) provided identification to PO Kamna, who did not reside at the location. PO Kamna called in § 87(2)(b)'s information and found he had an open warrant. § 87(2)(b) ran toward a pylon. PO Pina ran around the other side of the pylon to cut him off. PO Pina grabbed § 87(2)(b) around his body. § 87(2)(b) flailed his arms and legs. PO Gonzalez radioed for assistance. PO Gonzalez held his leg while PO Kamna and PO Pina attempted to handcuff him.

Numerous additional officers responded. Many of the officers participated in handcuffing § 87(2)(b). PO Gonzalez held § 87(2)(b)'s leg the entire time. She did not recall any officer kicking or punching § 87(2)(b). She did not know if any officer placed their arm across § 87(2)(b)'s neck.

PO Gonzalez identified herself as the officer kneeling behind § 87(2)(b) in the video.

Subject Officer: PO FRANCISCO PINA

- *PO Pina is a § 87(2)(b)-old Hispanic male who is 5'10" tall, weighs 235 pounds, and has black hair and brown eyes.*
- *On December 17, 2010, PO Pina, shield number 26670, worked from 4:00 p.m. until 12:35 a.m. on December 18, 2010. He was assigned to impact overtime with PO Kamna and PO Gonzalez. He was in uniform and assigned to a marked vehicle.*

Memo Book (encl. 9A-B)

PO Pina does not have any entries in his memo book regarding this incident. He has no notations for his tour.

CCRB Testimony (encl. 9C-D)

On May 19, 2011, PO Pina was interviewed at the CCRB. PO Pina did not recall whether he observed § 87(2)(b) inside the building. When he, PO Gonzalez, and PO Kamna approached him, he was outside the building and by himself. PO Pina did not recall how long they observed him at the location. The only reason they approached him was because the location is New York City Housing Authority building. § 87(2)(b) told the officers that he was with a group that was standing nearby. PO Kamna called his command with the information he obtained from the identification § 87(2)(b) provided and found § 87(2)(b) had a warrant. When informed of the warrant, § 87(2)(b) ran into a pillar and fell to the ground. PO Pina did not take § 87(2)(b) down.

PO Pina ran to § 87(2)(b) and jumped on him. PO Pina did not recall what § 87(2)(b) was saying. PO Pina wrapped his arm under § 87(2)(b)'s torso and put his weight on top of § 87(2)(b) to keep him from getting up and continuing to run. § 87(2)(b) first tried to get up and then kept his arms under him, preventing the officers from grabbing his arms. PO Pina was on § 87(2)(b)'s back and placed § 87(2)(b) in a "body lock" or a "face lock," which PO Pina described as putting his arm underneath § 87(2)(b) and across his torso and face while PO Pina was on top of him. PO Pina's arm would have been across § 87(2)(b)'s neck at some point as PO Pina's arm went between § 87(2)(b)'s chest and face. PO Pina kept his hold on § 87(2)(b) until additional units arrived. § 87(2)(b) was either trying to wiggle his way out or lying on top of his hands. § 87(2)(b) also went limp. PO Pina believed that going limp was § 87(2)(b)'s method of resisting. PO Pina could not tell what PO Kamna and PO Gonzalez were doing. When additional officers arrived, PO Pina released § 87(2)(b). PO Pina did not recall if he or other officers punched or kicked § 87(2)(b) or put a foot on his head.

PO Kamna and PO Pina escorted § 87(2)(b) to a marked van. They had to use force to put § 87(2)(b) in the van and sit him down in a seat. PO Pina put his body on § 87(2)(b) to prevent him from kicking. PO Pina did not recall punching § 87(2)(b). He did not know what PO Kamna did.

At the stationhouse, PO Pina and PO Kamna had to drag § 87(2)(b) because he repeatedly went limp and refused to walk. Once when § 87(2)(b) went limp, his body and head struck a door or gate. § 87(2)(b)'s head may have hit the desk. He and PO Kamna brought § 87(2)(b) to a back holding cell in order to search him incident to arrest because he was uncooperative at the desk. § 87(2)(b) took a crack pipe out of his clothing and attempted to throw it into the toilet. The officers restrained him to prevent him from destroying the crack pipe. § 87(2)(b) was not punched or kicked. PO Pina did not hear § 87(2)(b) request medical attention. At no point did PO Pina recall observing any injuries on § 87(2)(b) or hear § 87(2)(b) complain of any injuries. When asked about the injuries visible in § 87(2)(b)'s arrest photo, PO Pina stated that he did not know how or when they were sustained.

Subject Officer: PO ANDREW KAMNA

- PO Kamna is a § 87(2)(b)-old white male who is 5'8" tall, weighs 145 pounds, and has brown hair and brown eyes.
- On December 17, 2010, PO Kamna, shield number 24865, worked from 4:00 p.m. to 12:35 a.m. on December 18, 2010. He was assigned to robbery reduction overtime with PO Gonzalez and PO Pina. He was in uniform and assigned to a marked van.

Memo Book (encl. 10A)

In his memo book, PO Kamna noted that at 7:43 p.m., § 87(2)(b) who resides at § 87(2)(b), Brooklyn, NY 11212 was under arrest in front of § 87(2)(b).

UF 61 § 87(2)(b) (encl. 10B-C)

PO Kamna observed § 87(2)(b) on NYCHA property. § 87(2)(a) 160.50

§ 87(2)(a) 160.50

Online Booking Sheet for Arrest Number § 87(2)(b) (encl. 10D-E)

§ 87(2)(g)

Criminal Court Complaint (encl. 10F)

§ 87(2)(a) 160.50

CCRB Testimony (encl. 10G-I)

On May 24, 2011, PO Kamna was interviewed at the CCRB. § 87(2)(g)

PO Kamna, PO Gonzalez, and PO Pina observed several individuals inside § 87(2)(b). They were not doing anything that made PO Kamna believe that they were trespassing. After a few seconds and without any prior discussion, they approached the group to determine if any members of the group were trespassing; it was all of the officers' decision to approach. The officers all asked for their identification. A few of the individuals provided ID that showed that they lived at the location. § 87(2)(b) provided a photo copy of a benefit card. After determining that § 87(2)(b) had an open warrant and informing § 87(2)(b) that he was under arrest, § 87(2)(b) ran directly into a pylon and fell to the ground. § 87(2)(b) put his arms under his body. PO Kamna and PO Pina grabbed § 87(2)(b)'s arms and tried to pull them out from under his chest. PO Kamna did not observe PO Pina place his arm around § 87(2)(b)'s torso or neck. PO Kamna did not recall § 87(2)(b) going limp. § 87(2)(b) was not punched or kicked.

Additional officers responded. Eventually, PO Kamna and another officer handcuffed § 87(2)(b). PO Kamna and PO Pina put § 87(2)(b) into a van in the back seat. PO Kamna and PO Pina sat in front of § 87(2)(b). PO Kamna and PO Pina did not make physical contact with § 87(2)(b). § 87(2)(b) walked under his own power into the stationhouse. § 87(2)(b) did not go limp.

At the stationhouse, § 87(2)(b) was brought to the desk. He was yelling. § 87(2)(b) did not fall to the ground and his head did not hit the desk. Neither PO Pina nor PO Kamna hit § 87(2)(b)'s head against the desk. § 87(2)(b) asked to use the bathroom. To try to calm the situation, PO Kamna acquiesced. PO Kamna and one or more additional officers took § 87(2)(b) to the back holding cell where the bathrooms are located. At this point, PO Kamna observed that § 87(2)(b) had abrasions on his face. PO Kamna believed they were sustained at § 87(2)(b) when § 87(2)(b) ran into the pillar and when he was on the ground. § 87(2)(b) was un-handcuffed. § 87(2)(b) took a pipe with crack cocaine residue out of his jacket and threw it in the toilet bowl. § 87(2)(b) refused to be re-handcuffed by flailing his arms and tensing his arms. § 87(2)(b) was never on the ground. He was not punched or kicked. § 87(2)(b) did not ask for medical attention.

Witness Officer: SERGEANT WILLIAM WISE

- Sergeant Wise is a § 87(2)(b)-old white male who is 5'11" tall, weighs 180 pounds, and has blond hair and blue eyes.
- On December 17, 2010, Sergeant Wise, shield number 4262, worked from 4:00 p.m. to 2:57 a.m. on December 18, 2010. He was the patrol sergeant supervising officers with impact assignments and was not assigned a particular partner; he did not have a driver. He was in uniform and not assigned to a particular vehicle.

Memo Book (encl. 11A-C)

In his memo book, Sergeant Wise noted that at 7:31 p.m., PO Kamna had one individual under arrest § 87(2)(a) 160.50 at § 87(2)(b).

CCRB Testimony (encl. 11D-E)

On June 1, 2011, Sergeant Wise was interviewed at the CCRB. He was not present for the incident at § 87(2)(b) § 87(2)(g).

Witness Officer: LIEUTENANT PETER CAPONE

- Lt. Capone is a § 87(2)(b)-old white male who is 6'1" tall, weighs 225 pounds, has brown eyes, and is bald.
- On December 17, 2010, Lt. Capone worked from 7:00 p.m. to 3:05 a.m. on December 18, 2010. He was the lieutenant for impact north in the 73rd Precinct. He was in uniform and not assigned to a vehicle until 8:40 p.m.

Witness Officer: SERGEANT RICARDO OTERO

- Sgt. Otero is a § 87(2)(b)-old Hispanic male who is 5'10" tall, weighs 185 pounds, and has black hair and brown eyes. He has a zebra stripe tattoo on his forearm and upper arm.
- On December 17, 2010, Sgt. Otero worked from 2:50 p.m. to 11:47 p.m. He was assigned as the desk sergeant and was in uniform.

Lieutenant Peter Capone and Sergeant Ricardo Otero did not recall the incident (encl. 13A-E; encl. 14A-E).

Medical Records

Medical Treatment of Prisoner Report (encl. 15A)

§ 87(2)(b) is noted as having a possible fractured arm and dislocated shoulder.

§ 87(2)(b) visit on § 87(2)(b) (encl. 15B-AA)

§ 87(2)(b) was in police custody. § 87(2)(b) was diagnosed with multiple abrasions, a closed head injury, and contusions to an unspecified part of his body. It was noted that he had a broken arm prior to the incident.

NYPD Documents

Command Log from December 17, 2010 (encl. 16A)

§ 87(2)(b) was lodged at 7:45 p.m. and taken to Central Booking at 4:45 a.m. on December 18, 2010.

Prisoner Holding Pen Roster (encl. 16A-G)

§ 87(2)(b) was in the holding cells for approximately nine hours.

BADS Arrest Log for the 73rd Precinct on December 17, 2010 (encl. 16H-I)

Officers from Narcotics Borough Brooklyn North, the 73rd Precinct, Police Service Area 2, Patrol Borough Brooklyn North, and Transit District 33 made arrests on December 17, 2010.

Arrest Photo (encl. 16J)

In his arrest photo, § 87(2)(b) has visible abrasions on his face.

Other Evidence

Video of the Incident Taken By § 87(2)(b) (encl. 17A-F)

§ 87(2)(b) provided cell phone video of the incident that he obtained from § 87(2)(b)

Initially, three officers held § 87(2)(b) on the ground. One officer, determined through investigation to be PO Gonzalez, held his legs while the other two officers, known through investigation to be PO Pina and PO Kamna, were near § 87(2)(b)'s upper body. Eleven additional officers arrived and several assisted PO Pina and PO Kamna in placing § 87(2)(b) in handcuffs.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 7, 2011 with regard to the incident (encl. 19A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaints (encl. 3):

§ 87(2)(b)

Subject Officers CCRB History

- PO Andrew Kamna has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl 2A).
- PO Nahantara Gonzalez has been a member of the service for 4 years and there are no substantiated CCRB allegations against her (encl 2B).
- PO Francisco Pina has been a member of the service for 7 years and there are 3 substantiated CCRB allegations against him (encl. 2C-D).
 - In CCRB case number 200511164, an allegation of a stop was substantiated and PO Pina received instructions.
 - In CCRB case number 200700616, allegations of physical force and a threat of force were substantiated and PO Pina received command discipline B.

Conclusion

Identification of Subject Officers

PO Kamna is the arresting officer and acknowledged making physical contact with § 87(2)(b). PO Gonzalez acknowledged making physical contact with § 87(2)(b) and identified herself in the video of the incident. § 87(2)(g) PO Pina acknowledged putting his arm around § 87(2)(b)'s chest and face, § 87(2)(g). § 87(2)(g).

Investigation Findings and Recommendations

Allegation A: At § 87(2)(b) in Brooklyn, PO Andrew Kamna stopped § 87(2)(b)

§ 87(2)(b) alleged that PO Kamna, PO Gonzalez, and PO Pina approached him and a group of friends, several of whom live at § 87(2)(b) at the benches outside of § 87(2)(b). § 87(2)(b) stated that the officers checked his friends' identifications and allowed them to leave, whereupon PO Kamna checked § 87(2)(b) for warrants.

§ 87(2)(b), § 87(2)(g) PO Kamna stated that he observed § 87(2)(b) and other individuals for only a few seconds before approaching and that there was nothing that indicated to him that they were trespassing. PO Gonzalez stated that the group was not doing anything that caught her attention. PO Pina, however, recalled § 87(2)(b) as separated from the group and outside when they approached. The officers also stated that they did not observe § 87(2)(b) for more than two minutes and did not approach him for any reason other than his presence in a New York City Housing Authority location. Upon asking for identification, the officers determined that at least one member of the group with which § 87(2)(b) was observed was a resident of § 87(2)(b).

In order to conduct a stop, an officer must have reasonable suspicion that an individual "is committing, has committed, or is about to commit a crime." *People v. Ventura*, 913 N.Y.S.2d 543, 546 (2010) (citing *People v. DeBour*, 386 N.Y.S.2d 375 (1976)) (encl. 1A-C); *NYPD Interim Order* 23 (encl. 1D-G). Officers cannot stop individuals in NYCHA buildings based merely on their presence at the location. *Ventura*, at 546.

In *Ventura*, where the officer's stop was deemed improper, the officer stated that he observed the individual in the lobby of the location but that he did not observe the individual "doing anything in particular." *Id.* at 545. The officers gave no reason for approaching § 87(2)(b) other than his presence in a NYCHA location. PO Kamna stated specifically that there was nothing that indicated

to him that § 87(2)(b) was trespassing. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation B: At § 87(2)(b) in Brooklyn, PO Nahantara Gonzalez used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Gonzalez kicked him while he was on the ground at § 87(2)(b). PO Gonzalez stated that she was kneeling on the ground holding § 87(2)(b)'s feet and did not kick him. PO Gonzalez identified herself in the video of the incident, which shows that she was kneeling by § 87(2)(b)'s feet at the time § 87(2)(b) alleged that she was kicking him. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

Allegation C: At § 87(2)(b) in Brooklyn, en route to and at the 73rd Precinct stationhouse, PO Andrew Kamna used physical force against § 87(2)(b)

Allegation D: At § 87(2)(b) in Brooklyn, en route to and at the 73rd Precinct stationhouse, PO Francisco Pina used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Kamna and PO Pina punched him while he was on the ground at § 87(2)(b) in the van en route to the 73rd Precinct stationhouse, and in a rear holding cell at the 73rd Precinct stationhouse. He also alleged that officers kicked him at § 87(2)(b) and that PO Kamna and PO Pina banged his head against the desk at the 73rd Precinct stationhouse. § 87(2)(b)'s arrest photo shows abrasions to § 87(2)(b)'s head. Medical records indicate that § 87(2)(b) did sustain a head injury.

PO Kamna, PO Pina, and PO Gonzalez stated that at § 87(2)(b) § 87(2)(b) ran into a concrete pylon and fell to the ground and his head hit either the pylon or the ground. The officers stated that they held § 87(2)(b) down and placed him in handcuffs. PO Kamna stated that no force was used while § 87(2)(b) was in the prisoner van while PO Pina stated that he put his body weight on top of § 87(2)(b) to prevent him from kicking. PO Pina stated that § 87(2)(b) repeatedly went limp while he and PO Kamna were attempting to bring him into the 73rd Precinct stationhouse and during this, his head struck the desk. PO Kamna and Sergeant Wise stated that § 87(2)(b)'s head never hit the desk and § 87(2)(b) did not go limp. PO Kamna and PO Pina denied punching and kicking § 87(2)(b) in the holding cells at the 73rd Precinct stationhouse. Sergeant Wise stated that he was in the holding cells with PO Kamna and PO Pina and did not observe them do so.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation E: At § 87(2)(b) in Brooklyn, PO Francisco Pina used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that an officer, either PO Kamna or PO Pina, put his arm across his neck from behind, restricting his breathing such that he was unable to speak, though he never lost consciousness. PO Pina stated that he wrapped his arm around § 87(2)(b)'s chest and face while they were on the ground and PO Pina was on top of § 87(2)(b). PO Pina acknowledged that during

the course of those actions, his arm would have crossed § 87(2)(b)'s neck. PO Pina also stated that § 87(2)(b)'s body went limp while his arm was around § 87(2)(b).

Patrol Guide section 203-11 specifically bans the use of any form of chokehold (encl. 1H-I). A chokehold is defined as “any pressure to the throat or windpipe... which may prevent or hinder breathing or reduce intake of air.” *Id.* An officer was found guilty of excessive force when he placed his forearm against an individual’s throat, particularly in a manner that restricted his breathing. *NYPD v. Delacruz*, Disciplinary Case No. 82622/07 (December 21, 2007) (encl. 1J-N).

The facts are not in dispute. PO Pina put his arm around § 87(2)(b)'s neck, § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation F: At the 73rd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that he asked numerous officers for medical attention during the time he was in the holding cells and none obtained medical treatment for him. § 87(2)(b) was unable to describe any of these officers or say how many officers he asked. The desk officer, Sergeant Otero, and the administrative lieutenant, Lieutenant Capone, did not recall the incident. Officers from Narcotics Borough Brooklyn North, the 73rd Precinct, Police Service Area 2, Patrol Borough Brooklyn North, and Transit District 33 all made arrests on December 17, 2010 and may have been supervising their prisoners. Any officer in the 73rd Precinct stationhouse during the nine hours § 87(2)(b) spent in the holding cells may have walked past the holding cells at some point.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date